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criminal court complaint is annexed herein and incorporated by reference as **Exhibit Two**.

4. Claimant requests that he be permitted to file a late Notice of Claim as to the malicious prosecution claims only. A copy of the Proposed Notice of Claim is annexed herein and incorporated by reference as **Exhibit One**.

5. Moreover, it should be noted that the Federal 1983 Claim does not have a requirement of filing a Notice of Claim and has a three (3) year statute of limitations. See Owens v. Okure, 109 S. Ct. 573 (1989); see also Feuer v. NYCHHC, 170 Misc.2d 838 (1996) citing Felder v. Casey, 487 U.S. 131 (1988); Welch v. State, 286 A.D.2d 496; Zwecker v. Clinch, 279 A.D.2d 572 (2nd Dept. 2001); Lopez v. Shaughnessey, 260 A.D.2d 551; Corvetti v. Lake Pleasant, 227 A.D.2d 821; Lui v. New York City Police Dept., 216 A.D.2d 67; Lawles v. Buffalo, 177 A.D.2d 1007 (4th Dept. 1991); Omni Group Farms, Inc. v. Cayuga, 178 A.D.2d 977 (4th Dept. 1991).

6. As will be shown, *infra*, this application to allow the Claimant, **KHAYREE STEWART**, to file the Proposed Notice of Claim should be granted because Defendants acquired actual notice of the essential facts constituting the NY Claims within ninety (90) days of their accrual. Moreover, there would be no prejudice to the Defendants herein, and the Claimant has a reasonable excuse for filing this Notice of Claim late.

I. THE RESPONDENT CITY OF NEW YORK HAD ACTUAL KNOWLEDGE OF THE ESSENTIAL FACTS OF THE NY CLAIMS

7. NY Municipal Law Section 50-e(5) reads, in pertinent part:

“Upon application, the court, in its discretion, may extend the time to serve a notice of claim specified in paragraph (a) of subdivision one.

The extension shall not exceed the time limited for the commencement of an action by the claimant against the public corporation. In determining whether to grant the extension, the court shall consider, in particular, *whether the public corporation or its attorney or its insurance carrier acquired actual knowledge of the essential facts constituting the claim within the time specified in subdivision one or within a reasonable time thereafter.*

The court shall also consider all other relevant facts and circumstances, including...*whether the delay in serving the notice of claim substantially prejudiced the public corporation in maintaining its defense on the merits*" (emphasis added)."

8. The courts have an inherent power, pursuant to NY Municipal Law Section 50-e, to grant leave to serve a late notice of claim. See Cohen v. Pearl River, 51 N.Y.2d 256 (1980) In Beary v. City of Rye, 44 N.Y.2d 398 (1978), the Court of Appeals explained that the standards of NY Municipal Law Section 50-e were modified so that the grounds upon which a court may allow a late notice of claim were expanded, and the time for filing a notice of claim was lengthened.

9. As can be seen in **Exhibit One**, Claimant, **KHAYREE STEWART** was arrested on February 13, 2016, at approximately 1:00 A.M., in the vicinity of the corner of Crotona Avenue and East 83rd Street, County of Bronx, State of New York, Claimant, **KHAYREE STEWART**, was illegally searched and seized by New York City Police Department hereinafter referred to as "NYPD" officers who had no probable cause to do so. Claimant had not committed any crime or violation of the law. On the above stated date, time and location Claimant, **KHAYREE STEWART** was falsely arrested by NYPD Police Officer Anibal Vasquez of the 48th NYPD Precinct, Shield #5559 under Arrest # B16609148 and Docket No. 2016BX006854. Claimant had multiple assault and batteries committed to his person including, but not limited to, being put in a chokehold, dropped to the ground and placed in handcuffs too tight. Claimant was then taken to a

local NYPD Precinct and criminally processed. After being in police custody over the course of two (2) days or approximately twenty two (22) hours, Claimant was released on his own recognizance with a desk appearance ticket, on or about February 14, 2016. This release was subject to his later court appearances, all of which Claimant attended until obtaining the aforementioned Dismissal on or about August 10, 2017. Thus, between the time the Claimant was questioned and detained, and the time that the Claimant's case was heard, the Respondent, **CITY OF NEW YORK**, had actual knowledge of the essential facts constituting the NY Claims.

10. Both the First and Second Departments have repeatedly held in cases involving civil claims of false arrest and imprisonment that where, as here, the NYPD and District Attorney's Office investigated the alleged crime(s), "knowledge of the essential facts constituting the claims within the statutory period can be imputed to the City." Grullon v. City of New York, 222 A.D.2d 257, 258 (1st Dept. 1985), *citing* Taturn v. City of New York, 161 A.D. 580, 581 (2nd Dept. 1990); *see also* Justhiano v. NYCHA, 191 A.D. 252 (1st Dept. 1993); Matter of Rlese v. County of Nassau, 141 A.D.2d 649 (2nd Dept. 1988); Winzel v. County of Suffolk, 92 A.D.2d 545 (2nd Dept. 1983); Ansaldo v. City of New York, 92 A.D.2d 557 (2nd Dept. 1983).

11. Additionally, where a municipal Respondent possesses records which set forth the essential facts constituting a claim, courts generally hold that permission to file a late notice of claim should be granted. *See* Rodriguez v. NYCH&HC, 270 A.D.2d 110 (1st Dept. 2000); Melendez v. City of New York, 245 A.D.2d 564 (2nd Dept. 1997) (reversing the trial court's denial of claimant's application to file a late notice of claim); Guzman v. County of Westchester, 208 A.D.2d 925 (2nd Dept. 1994); Montalvo v. Town of Harrison,

151 A.D.2d 652 (2nd Dept. 1989); Reisse v. County of Nassau, 141 A.D.2d 649 (2nd Dept. 1989); see generally Tatum v. City of New York, 161 A.D.2d 580 (2nd Dept. 1990)

12. Here, the Respondent, **CITY OF NEW YORK**, had knowledge of the essential facts since the NYPD, through its employees and agents, were present at the scene of the incident and, in fact, actively perpetrated the NY Claims alleged to be sustained by the Claimant. The officers who arrested Claimant in the instant matter had memo books that they are required to use to memorialize the facts of the case as part of proper NYPD police procedure. The arresting officer must then provide all relevant facts used to believe there is probable cause to the District Attorney's office so that the D.A.'s office can properly draft an accusatory instrument for criminal charges to be prepared. Here, all but the filing of an accusatory instrument occurred because Claimant was arrested, detained, and processed in this matter. The malicious prosecution claim accrued from the date of dismissal on August 10, 2017, less than twenty five (25) months ago. Most criminal cases in the New York County last longer than twenty five (25) months. Your Claimant has attached hereto as **Exhibit Three**, an authorization for the Respondents to unseal the case and research the arrest. After reviewing the instant matter with their officers, the Respondent will be hard pressed to show that the police officers have documented the progress of the instant case or even know if it was dismissed.

13. Moreover, the Respondent has investigated the allegations that form the basis for the NY claims and have been in possession of records that adequately set forth the facts underlying the NY claims, including detailed police reports and records. Thus, the Respondent is in possession of records that give them actual knowledge of the essential

facts of the NY claims, which they obtained through their own investigation, and which were created by their own employees and agents. Therefore the Respondents have ample information to use in this case to refresh their recollection in this matter.

II. THE RESPONDENT CITY OF NEW YORK WOULD NOT SUFFER ANY PREJUDICE BY ALLOWING THE PROPOSED NOTICE OF CLAIM TO BE FILED

14. The Claimant's delay in filing a timely notice of claim in this case does not substantially prejudice the Respondent's ability to defend the NY Claims on the merits.

In the Matter of Gerzel v. New York City Health & Hospital Corp., 117 A.D.2d 549 (1st Dept. 1986), the court held that "[t]he only legitimate purpose served by [NY Municipal Law] Section 50(e) is to protect the public corporation against spurious claims and to assure it an adequate opportunity to explore the merits of the claim while information is still readily available." Id., at 550 *quoting* Teresta v. City of New York, 304 N.Y. 440, 443. Additionally, in Hayden v. Incorporated Village of Hempstead, 103 A.D.2d 765 (2nd Dept. 1984), the court held that the mere passage of time does not constitute substantial prejudice. See also Holmes v. City of New York, 189 A.D.2d 676 (1st Dept. 1993 (holding that possession of records by the municipal corporation constituted actual notice and defeated a claim of prejudice by the municipality).

15. It is respectfully submitted that this case is precisely the type of situation which the legislature envisioned when it empowered the court with the discretion to permit a late filing of a notice of claim to a public corporation. Having suffered through the indignity of a false arrest and imprisonment, with all of its attendant stress, expense and humiliation, it would certainly be highly prejudicial to the Claimant to be denied in his application to submit the Proposed Notice of Claim. Also, whether or not the herein

motion is granted, the Respondent will be defending against Claimant's Federal 1983 Claim which will require the same investigative resources and activities, such as deposing the Claimant and the individually-named defendants in the above-referenced matter.

16. Thus, the Respondent, **CITY OF NEW YORK**, would not be unduly prejudiced by being compelled to defend a case where the delay in filing is less than the statute of limitations for the NY Claims, which is one (1) year and ninety (90) days. See Sarjoo v. NYCH&HC, 270 A.D.2d 110 (1st Dept. 2000) (noting that a court may grant a plaintiff permission to serve a late notice of claim so long as the application for such permission is filed prior to the expiration of the applicable statute of limitations).

III. THE CLAIMANT HAS A REASONABLE EXCUSE FOR THE DELAY IN FILING A TIMELY NOTICE OF CLAIM

17. A reasonable excuse for the delay in filing a timely notice of claim should be presented by a claimant in an application for leave to serve a late notice of claim but is not dispositive. See Reisse v. County of Nassau, 141 A.D.2d 649 (2nd Dept. 1988) (stating that all relevant facts must be considered despite the fact that the reasonableness of the petitioner's excuse of the delay is debatable); Matter of Gerzel v. New York City Health & Hospital Corp., 117 A.D.2d 549 (1st Dept. 1986) (stating that the claimant's failure to present a more reasonable explanation is without significance given the City's failure to show substantial prejudice).

18. Here the claimant **KHAYREE STEWART** was fighting the false arrest charges against him until August 10, 2017 when the case was finally dismissed.

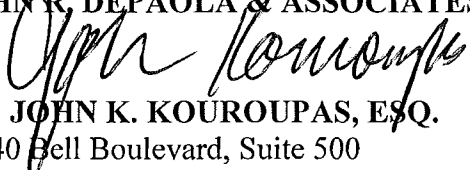
19. Simply stated, the Respondent **CITY OF NEW YORK** had notice of the essential facts underlying the NY Claims within the statutory ninety (90) day period. They had actual knowledge of these facts from their own investigative efforts, and through the actions and records of their own employees and agents. Finally, there has been no claim of substantial prejudice made by the Respondent. Conversely, it would be the Claimant that would be substantially prejudiced if this motion were to be denied, in that it would prevent him from bringing an otherwise meritorious set of NY Claims.

No application has been made in this or any other court for the same or similar relief.

WHEREFORE, it is respectfully requested that the within application be **GRANTED** in all respects, and Claimant, **KHAYREE STEWART's** proposed Notice of Claim, as annexed hereto, be deemed timely served upon the service of these papers as to all the claims made therein, including the timely malicious prosecution claim, the Federal 1983 Claim and the NY Claims, and for such other and further relied as to this Court seems just and proper.

Dated: Bayside, NY
June 8, 2018

Yours, etc.,
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